



CHAPTER 55.

An Act to amend the Factories Act, 1937, and provide for matters consequential on the amendment of that Act. [30th July 1948.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Medical Supervision.

1.—(1) Section ninety-nine of the principal Act (which requires young persons under sixteen who are taken into employment in a factory to be certified fit for the employment) shall apply also to young persons who have attained the age of sixteen ; and accordingly, in the case of a certificate issued under that section on or after the appointed day, any condition on which it is issued shall continue to have effect after the young person attains the age of sixteen, notwithstanding that no direction in that behalf is made in the certificate as provided by subsection (5) of that section.

(2) A certificate issued under the said section ninety-nine on or after the appointed day—

(a) shall be in force only for a period of twelve months or such less period as may be prescribed by regulations of the Minister ; and

(b) may, on any examination of the young person under the principal Act by an appointed factory doctor, be revoked or varied as from any date before its expiration ;

and, in relation to a young person whose certificate so issued has expired or been revoked or varied, subsection (1) of the said section ninety-nine shall apply—

(i) as if the certificate had not been given or (in the case of a variation) had been given as varied ; and

- (ii) where immediately before the date on or from which the expiration, revocation or variation has effect the young person is employed in any employment to which the certificate relates, as if he had been taken into that employment on that date.

(3) The power of an appointed factory doctor under subsection (3) of the said section ninety-nine to issue a certificate in respect of employment in different factories in the occupation of the same occupier shall be exercisable in relation to factories outside, as well as inside, that doctor's district, and a certificate may be issued under that section in respect of employment in factories in the occupation of different occupiers either in any area or in such area as may be specified in the certificate :

Provided that a certificate issued by virtue of this subsection shall relate only to employments which are directed by rules made under subsection (8) of the said section ninety-nine to be treated for this purpose as belonging to the same group, and rules so made may make further provision for restricting or regulating the exercise of the powers conferred by this subsection.

Extension of
s. 99 to
employments
outside
factories.

2.—(1) The provisions of the principal Act mentioned in the next following subsection (which provide for the partial application of the Act outside factories) shall have effect as if they included a reference to sections ninety-nine, one hundred and twenty-six and one hundred and twenty-seven among the provisions applied in the cases to which they respectively relate but so that the said sections shall be applied with such adaptations and modifications as may be made by regulations made by the Minister.

(2) The provisions which are to have that effect are—

- (a) subsection (2) of section one hundred and five (which relates to the loading, unloading and coaling of ships) ;
- (b) section one hundred and six (which relates to certain other work on ships in a harbour or wet dock) ;
- (c) section one hundred and seven (which relates to building operations) ;
- (d) section one hundred and eight (which relates to engineering construction).

(3) Notwithstanding anything in this section, subsection (2) of the said section one hundred and five shall not have the effect of applying sections ninety-nine, one hundred and twenty-six and one hundred and twenty-seven of the principal Act in relation to a member of the crew of a ship.

3. Where it appears to the Minister that there may be risk of injury to the health of persons employed in a factory—

Extension of powers under s. 11.

- (a) from any substance or material brought to the factory to be used or handled therein; or
- (b) from any change in the conditions of work or other conditions in the factory;

he shall have the like power to make special regulations or an order under section eleven of the principal Act as to the medical supervision of the persons employed in the factory, or any class of them, as he has in the cases mentioned in subsection (1) of that section.

Suitability of Factory Premises.

4.—(1) In section forty of the principal Act—

Extension of

- (a) after the words "is in such a condition" there shall be inserted the words "or is so constructed or placed"; and
- (b) after the words "carried on therein" there shall be inserted the words "or intended to be carried on therein"; and
- (c) for the words "without risk of bodily injury" there shall be substituted the words "with due regard to the safety, health and welfare of the persons employed"; and
- (d) the words "until such works have been executed as are in the opinion of the court necessary to remove the danger" shall be omitted;

powers of court of summary jurisdiction for preventing or removing danger in factories.

and accordingly that section shall have effect (subject to the following provisions of this section) as set out in the First Schedule to this Act.

(2) The said section forty shall apply also in relation to premises not being a factory but intended to be used as a factory, and to the process or work intended to be carried on therein, as if the premises were a factory; and in the case of any such premises an order may also be made under that section if the court is satisfied that the process or work cannot be carried on therein without a contravention of the principal Act or a regulation or order thereunder.

(3) The carrying on of any process or work may, by an order under the said section forty, be prohibited either indefinitely, or until such steps have been taken as may be specified in the order to enable the process or work to be carried on with due regard to the safety, health and welfare of the persons employed or without such a contravention as aforesaid, as the case may be; but any such order may be revoked or varied on the application by way of complaint of the occupier or owner of the factory or premises.

(4) On any application for the revocation or variation of an order under the said section forty, the inspector for the district shall be entitled to be heard.

(5) In the application of this section to Scotland, subsection (3) shall have effect as if the words "by way of complaint" were omitted.

Notice of
occupation
of factory
or use of
mechanical
power.

5.—(1) Section one hundred and thirteen of the principal Act shall, subject to the following provisions of this section, be amended as follows:—

- (a) in subsection (1), for the words "within one month after" there shall be substituted the words "not less than one month before", after the first "is" there shall be inserted the words "to be" and the words from "and if" to the end of the subsection (which provide for a fine of up to twenty pounds or one pound for each day of default, whichever is the greater) shall be omitted;
- (b) in subsection (2), for the words "Within one month of" there shall be substituted the words "Not less than one month before" and the words "after the commencement of this Act" shall be omitted;

and accordingly the said section shall have effect (subject as aforesaid) as set out in the First Schedule to this Act.

(2) Notwithstanding anything in the said section, a person may begin to occupy, or to use any premises as, a factory, and mechanical power may be first used in a factory, less than one month after the notice required by that section has been served if the inspector for the district gives written permission, and a person may also begin to occupy a factory less than one month after the notice has been served or before serving the notice, if he takes over from another person without changing the nature of the work and the notice is served as soon as practicable and in any case within one month of his taking over.

(3) If a person begins to occupy, or to use any premises as, a factory before he is entitled to do so under subsection (1) of the said section, or if a person entitled thereunder to occupy a factory before giving notice fails to give the required notice within the time allowed, he shall be guilty of an offence and liable on conviction thereof to a fine not exceeding twenty pounds for the first, and five pounds for each subsequent, day during which he occupies the factory, or uses the premises as a factory, as aforesaid, or during which he fails to give the notice after the expiration of the time allowed, as the case may be.

(4) The powers of an inspector under section one hundred and twenty-three of the principal Act shall include power by day to enter, inspect and examine any premises which are stated in

a notice under the said section one hundred and thirteen to be intended to be used as a factory, and in relation to any such premises the reference to the occupier of a factory in subsection (2) of the said section one hundred and twenty-three (which requires the occupier to provide the means required by an inspector for an inspection) shall be construed as a reference to the person giving the notice.

(5) Nothing in this section shall apply where a person begins to occupy, or to use any premises as, a factory, or mechanical power is first used in a factory, before the appointed day.

Sitting Facilities.

6.—(1) The following provisions of this section shall be substituted for those contained in section forty-four of the principal Act (which requires facilities for sitting during opportunities for resting to be provided for all female workers whose work is done standing). Provision of seats.

(2) Where any employed persons have in the course of their employment reasonable opportunities for sitting without detriment to their work, there shall be provided and maintained for their use suitable facilities for sitting sufficient to enable them to take advantage of those opportunities.

(3) Where a substantial proportion of any work can properly be done sitting—

(a) there shall be provided and maintained for any employed person doing that work a seat of a design, construction and dimensions suitable for him and the work, together with a foot-rest on which he can readily and comfortably support his feet if he cannot do so without a foot-rest; and

(b) the arrangements shall be such that the seat is adequately and properly supported while in use for the purpose for which it is provided.

(4) For the purposes of the last foregoing subsection, the dimensions of a seat which is adjustable shall be taken to be its dimensions as for the time being adjusted.

Administration and Enforcement.

7.—(1) The name "examining surgeon" for the medical practitioners appointed for the purposes of the principal Act under section one hundred and twenty-six thereof shall be replaced by the name "appointed factory doctor", and references to an examining surgeon so appointed, whether contained in that Act or elsewhere, shall have effect accordingly. Appointed factory doctors.

(2) Nothing in subsection (3) of the said section one hundred and twenty-six (which imposes restrictions on medical practitioners acting under that section for a factory where they have a

personal interest) shall, except in such cases and for such purposes as may be prescribed, prevent a medical practitioner appointed to act as appointed factory doctor for any factory from so acting by reason only of the fact that he is employed by the occupier of the factory in connection with the medical supervision of persons employed in the factory.

(3) For any reference in the said section one hundred and twenty-six to the poor law medical officer for the district as the person who is to act where there is no appointed factory doctor, there shall be substituted a reference to the medical officer of health for the administrative county or county borough or such other medical officer of the council of the county or county borough as he may designate for the purpose.

Amendment of
certain powers
to make
regulations,
etc.

8.—(1) Any power conferred by the provisions of the principal Act specified in the first column of the Second Schedule to this Act to prescribe standards as to the matters mentioned in the second column of that Schedule may be exercised either—

(a) so that conformity to the prescribed standard is to be both obligatory and a sufficient compliance with the requirements of the principal Act for the purposes of which the standard is prescribed ; or

(b) so that conformity to the prescribed standard is to be obligatory, but is not necessarily to be taken as a sufficient compliance with the said requirements.

(2) Any power to prescribe standards which is conferred as aforesaid shall include power to prescribe different standards in different circumstances.

(3) In section forty-three of the principal Act (which by subsection (1) requires the provision of adequate and suitable accommodation for clothing and by subsection (2) authorises a standard of suitable accommodation to be prescribed) for the words " a standard of suitable accommodation " in the said subsection (2) there shall be substituted the words " a standard of adequate and suitable accommodation ".

(4) Any power to make regulations, rules or orders conferring or providing for exemptions from any requirement of the principal Act or of an instrument made thereunder shall include power to provide for particular exemptions to be granted, either unconditionally or subject to conditions, by an inspector; and the power to impose any requirement by an instrument made under the principal Act shall include power to provide for exemptions from the requirement in special circumstances.

(5) Where the principal Act provides for its enforcement in respect to any matters by some other officer instead of an inspector, then in respect to those matters the last foregoing

subsection shall have effect with the substitution of a reference to that officer for the reference to an inspector.

(6) The two last foregoing subsections shall be deemed always to have had effect, and to have applied to the enactments repealed by the principal Act as they apply to the principal Act.

9.—(1) The powers of an inspector under section one hundred and twenty-three of the principal Act shall include power to enter, inspect and examine at all reasonable times any warehouse and every part thereof—

Inspection of
warehouses
where young
persons are
employed.

(a) by day or night, when he has reasonable cause to believe that any young person is employed in or in connection with the warehouse in such circumstances that section ninety-eight of the principal Act (which regulates the employment of young persons elsewhere than in factories) applies to him ;

(b) by day, when he has reasonable cause to believe that any young person has within the preceding two months been employed as aforesaid, but not that any young person is so employed.

(2) For the purposes of the foregoing subsection, a warehouse shall be deemed to be included in the expression " factory " in the following provisions of the said section one hundred and twenty-three, namely—

(a) paragraphs (e) and (f) of subsection (1) (which confer power to obtain information from persons in or employed in a factory) ; and

(b) subsections (2), (3) and (4) (which relate to the provision of the means required by an inspector for an inspection and to obstruction of an inspector).

10.—(1) In subsection (2) of section one hundred and thirty of the principal Act—

(a) for the words " in respect of that contravention " there shall be substituted the words " by reason only of the contravention of the said provisions of Part X of this Act, or the contravention of the provision imposing the said duty, as the case may be " ; and

Offences by
persons other
than occupier
or owner of
factory.

(b) at the end of the subsection there shall be added the words " but this subsection shall not be taken as affecting any liability of the occupier or owner in respect of the same matters by virtue of some provision other than the provisions or provision aforesaid " ;

and the subsection shall accordingly have effect as set out in the First Schedule to this Act.

(2) It is hereby declared that the persons whom the occupier or owner of a factory charged with an offence under the principal Act is entitled under section one hundred and thirty-seven thereof to have brought before the court as the actual offender include any person whatsoever whom he charges as the actual offender, whether or not that person is his agent or servant.

(3) In the application of the principal Act to Scotland the following provisions shall have effect in place of subsection (1) of the said section one hundred and thirty-seven :—

“(1) Where the occupier or owner of a factory who is charged with an offence under this Act proves to the satisfaction of the court that he has used all due diligence to enforce the execution of this Act and of any relevant order or regulation made thereunder and that the offence was due to the act or default of some other person who committed it without his consent, connivance or wilful default, he shall be acquitted of the offence.”

Miscellaneous Amendments of Principal Act.

Amendments
of Part II
(Safety).

11.—(1) Where a hoistway or liftway is required by subsection (3) of section twenty-two of the principal Act to be protected by an enclosure fitted with gates but, because the hoist or lift is not connected with mechanical power, subsection (4) of that section (which requires the gates to be fitted with devices to ensure the closing of the gates) does not apply, that section shall be taken as requiring any such gate as aforesaid to be kept closed and fastened except when the cage or platform is at rest at the landing.

(2) For the requirement of paragraph (c) of subsection (1) of section twenty-seven of the principal Act (which relates to precautions in connection with work in confined spaces) that the breathing, reviving and rescue apparatus there mentioned shall be periodically inspected in the prescribed manner, there shall be substituted a requirement that it shall be thoroughly examined by a competent person at least once a month, or at such other intervals as may be prescribed, and that a report on every such examination, signed by the person making the examination and containing the prescribed particulars, shall be kept available for inspection.

(3) After subsection (1) of the said section twenty-seven there shall be inserted the following subsection :—

“(1A) Without prejudice to subsection (1) of this section, a person shall not enter or remain in any chamber, tank, vat, pit, pipe, flue or similar confined space for any purpose unless either—

- (a) he is ensured of a supply of air adequate for respiration and to render harmless any fumes ; or
- (b) he is wearing a suitable breathing apparatus.”

(4) In subsection (4) of section twenty-eight of the principal Act (which requires precautions to be taken before any plant, tank or vessel used to contain an explosive or inflammable substance is subjected to certain operations) any reference to a cutting operation which involves the application of heat shall include any operation involving the application of heat for the purpose of taking apart or removing the plant, tank or vessel or any part of it.

(5) In subsection (3) of section thirty-three of the principal Act (which requires periodical examinations of gasholders of which any lift has been in use more than twenty years) the words "within two years of the coming into operation of this section and thereafter" shall be omitted, and the subsection shall accordingly require an examination to be made as therein mentioned, in the case of every gasholder of which a lift has been in use for more than twenty years, at least once in every period of ten years :

Provided that, where on the first day of July, nineteen hundred and forty-eight, a lift of the gasholder had been in use for more than twenty-eight years, but an examination had not been made as aforesaid within eight years before that date, this subsection shall not require an examination to be so made within a period ending earlier than two years from that date.

12.—(1) In subsection (1) of section sixty of the principal Act the word "plant" there shall be inserted the words "equipment, appliance" and for the words "persons employed in connection therewith" there shall be substituted the words "the persons employed"; and accordingly that subsection shall have effect as set out in the First Schedule to this Act.

Amendments
of Part IV
(Health,
Safety and
Welfare—
special
provisions).

(2) The power of an inspector under subsection (1) of section sixty-two of the principal Act to take for analysis samples of substances used or intended to be used in a factory (which under that section is exercisable only where he suspects a contravention of a regulation under Part IV of that Act, or he is of opinion that the substance is likely to cause bodily injury to the persons employed) shall extend to any substance so used or intended to be used which he thinks may prove on analysis to be likely to cause bodily injury to the persons employed.

13.—(1) Subsection (1) of section ninety-four of the principal Act (which provides that, subject to prescribed conditions, certain provisions of Part VI of the Act shall not apply to women and young persons over sixteen employed in certain processes required to be carried out without delay in connection with fish, fruit and vegetables) shall have effect as if the provisions therein mentioned included those of section seventy-seven of that Act (which prohibits the employment of women and young persons on Sunday).

Amendments
of Part VI
(Employment
of Women and
Young
Persons).

(2) Section ninety-five of the principal Act (which authorises the Minister to make regulations varying the provisions of Part VI of that Act in the case of certain factories where milk is treated) shall have effect with the substitution for the words "in which cream, butter or cheese is made" of the words "in which cream, butter, cheese, milk powder, condensed milk or any other milk product is made".

Amendments
of Part VII
(Special
Applications
and
Extensions).

14.—(1) Section one hundred and two of the principal Act (which applies and modifies certain provisions thereof where part of a building is let off as a separate factory, so as to impose obligations on the owner of the building) shall be amended as follows :—

- (a) the provisions of Part II applied in relation to parts of the building not comprised in the factory shall be extended to include—
 - (i) sections twenty-three and twenty-four (which relate to lifting machines and lifting tackle) ;
 - (ii) sections thirty and thirty-one (which relate to steam receivers and steam containers and to air receivers) and, so far as it relates to those sections, section thirty-two ;
 - (iii) sections thirty-nine and forty (which relate to the power of courts of summary jurisdiction to make orders in cases of danger or of unsatisfactory premises);
- (b) for the purposes of the provisions applied by the foregoing paragraph, lifting machines attached to the outside of the building, and chains, ropes and lifting tackle used in connection with those machines, shall be treated as being in the building, but any lifting machine not used for the purposes of the factory, and any chains, ropes or lifting tackle not used in connection with a lifting machine so used, shall be disregarded ;
- (c) for any contravention (whether as respects the factory or otherwise) of the provisions referred to in sub-paragraphs (i) and (ii) of paragraph (a) of this subsection, or of the provisions of the said Part II with respect to steam boilers—
 - (i) if it is a contravention with respect to any machinery or plant belonging to or supplied by the occupier of the factory, he shall be responsible ; and
 - (ii) if it is not, the owner of the building shall be responsible ;

so, however, that the owner shall not be responsible for a contravention of the said provisions in so far as they relate to matters outside his control and for any such contravention as respects the factory the occupier shall be responsible ;

- (d) in the said sections thirty-nine and forty as they apply in relation to the factory and as they are applied by the said paragraph (a), references to the occupier shall be taken as references to the occupier of the factory or to the owner of the building, according to which of them is responsible in respect of the matters complained of ;
- (e) where the said section one hundred and two applies any provision containing a reference to the general register, then, in relation to matters in respect of which the owner of the building is responsible, that reference shall be taken as a reference to a register to be kept by him, and subsection (3) of section one hundred and forty-two of the principal Act (which makes the general register evidence of certain matters) shall apply in relation to any register kept by the owner in pursuance of the said section one hundred and two as if he were the occupier of a factory.

(2) The provisions applied by subsection (2) of section one hundred and five of the principal Act (which extends the Act in part to loading, unloading and coaling ships) shall include the provisions of Part XIV thereof (which relates to the interpretation of the Act and other matters of a general nature).

(3) Subsection (1) of section one hundred and six of the principal Act (which extends the Act in part to certain work on ships in a harbour or wet dock, including the cleaning of oil-fuel tanks) shall apply to cleaning—

- (a) any tank last used for oil of any description carried as cargo ; and
- (b) any tank or hold last used for any substance so carried of a description specified in regulations of the Minister as being of a dangerous, injurious or offensive nature ;

as it applies to cleaning oil-fuel tanks ; and the provisions applied by that subsection shall include section thirty-nine of the principal Act (which relates to the power of courts of summary jurisdiction to make orders as to dangerous conditions and practices).

(4) The application of the principal Act—

- (a) to any building operations by virtue of section one hundred and seven of that Act ; or
- (b) to any works of engineering construction by virtue of section one hundred and eight thereof ;

shall not be excluded by reason of the fact that they are undertaken on premises to which the Act applies apart from the said section one hundred and seven or eight, as the case may be, nor be taken as prejudicing the application of the Act to those premises apart from that section.

Supplementary.

Interpretation
and
construction
of this Act
and the
principal Act.

1 Edw. 8 &
1 Geo. 6.
c. 67

15.—(1) In this Act—

the expression “ the appointed day ” means, for the purposes of any provision of this Act, the day on which that provision comes into force ;

the expression “ the Minister ” means the Minister of Labour and National Service ;

the expression “ the principal Act ” means the Factories Act, 1937 ;

and other expressions have the meanings respectively assigned to them by the principal Act.

(2) Any reference in the principal Act or this Act to a provision of that Act which is amended by this Act shall be construed as a reference to that provision as so amended.

9 & 10 Geo. 6
c. 36.

(3) The Statutory Instruments Act, 1946, shall apply in relation to any regulations, rules or orders made by virtue of any provision of this Act as it applies to regulations, rules or orders made under the provision of the principal Act amended by that provision of this Act.

Short title,
citation,
repeal and
commence-
ment.

16.—(1) This Act may be cited as the Factories Act, 1948, and this Act and the principal Act may be cited together as the Factories Acts, 1937 and 1948.

(2) The provisions of the principal Act specified in the Third Schedule to this Act are hereby repealed to the extent so specified.

(3) Sections one to five and eleven to fourteen of this Act shall not come into force until the first day of October, nineteen hundred and forty-eight, and section six thereof shall not come into force until the first day of October, nineteen hundred and fifty.

SCHEDULES.

Sections 5, 12.

FIRST SCHEDULE.

PROVISIONS OF PRINCIPAL ACT SET OUT AS AMENDED.

Section 40.

40. A court of summary jurisdiction may, on complaint by an inspector, and on being satisfied that any factory or part of a factory is in such a condition, or is so constructed or placed, that any process or work carried on therein, or intended to be carried on therein, cannot be so carried on with due regard to the safety, health and welfare of the persons employed, by order prohibit the use thereof for the purpose of that process or work.

Section 60 (1).

60.—(1) Where the Minister is satisfied that any manufacture, machinery, plant, equipment, appliance, process or description of manual labour used in factories is of such a nature as to cause risk of bodily injury to the persons employed, or any class of those persons he may, subject to the provisions of this Act, make such special regulations as appear to him to be reasonably practicable and to meet the necessity of the case.

Section 113.

113.—(1) Every person shall, not less than one month before he begins to occupy, or to use any premises as, a factory, serve on the inspector for the district a written notice stating the name of the occupier or the title of the firm, the postal address of the factory, the nature of the work, whether mechanical power is to be used and, if so, its nature, the name of the district council within whose district the factory is situated and such other particulars as may be prescribed.

(2) Not less than one month before the date upon which mechanical power is first used in any factory, the occupier shall serve on the inspector for the district a written notice stating the nature of such mechanical power.

Section 130 (2).

130.—(2) In the event of a contravention by an employed person of the provisions of Part X of this Act with respect to duties of persons employed or of a contravention by any person of any regulation or order made under this Act which expressly imposes any duty upon him, that person shall be guilty of an offence and the occupier or owner, as the case may be, shall not be guilty of an offence by reason only of the contravention of the said provisions of Part X of this Act, or the contravention of the provision imposing the said duty, as the case may be, unless it is proved that he failed to take all reasonable steps to prevent the contravention; but this subsection shall not be taken as affecting any liability of the occupier or owner in respect of the same matters by virtue of some provision other than the provisions or provision aforesaid.

Section 8.

SECOND SCHEDULE.

POWERS UNDER THE PRINCIPAL ACT TO PRESCRIBE STANDARDS.

<i>Provision of principal Act.</i>	<i>Matters for which standards may be prescribed.</i>
Subsection (3) of section three ...	Temperature in workrooms.
Subsection (2) of section four... ..	Ventilation of workrooms.
Subsection (2) of section five	Lighting.
Subsection (2) of section seven	Sanitary conveniences.
Subsection (2) of section forty-two ...	Washing facilities.
Subsection (2) of section forty-three...	Accommodation for clothing.

Section 16.

THIRD SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

In section twenty-seven the words "and shall be periodically inspected in the prescribed manner" in paragraph (c) of subsection (1).

In subsection (3) of section thirty-three the words "within two years of the coming into operation of this section and thereafter".

In section forty the words from "until" onwards.

In section ninety-nine, in subsection (1) the words "has not attained the age of sixteen and", and (in relation to certificates issued on or after the appointed day for the purposes of section one of this Act) in subsection (5) the words "Where the examining surgeon so directs in the certificate" and the words from the first "shall" to "and" and the whole of subsection (6).

In section one hundred and two the words "steam boilers" in the last two places where they occur.

In section one hundred and thirteen, in subsection (1) the words from "and if he fails to do so" onwards, and in subsection (2) the words "after the commencement of this Act".

In section one hundred and twenty-six the proviso to subsection (3).

In subsection (17) of section one hundred and fifty-six the words "subsection (1) of section one hundred and thirty-seven".

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